

Contractor's right to compensation for damages shall not be affected; the Contractor shall be entitled to claim for damages even in an amount exceeding the paid contractual penalty. Costs of legal assistance related to debt recovery shall be regarded as ancillary rights of the debt and shall be billed to the Buyer separately. In individual cases the Contractor may waive its claim for payment of the contractual penalty.

- 4.5. The Buyer shall not be entitled to refuse or to defer any payment on account of a complaint about defects. In the case of a complaint about visual defects, the payment shall be solved by mutual agreement of both parties.
- 4.6. The Contractor shall be entitled to suspend delivery of ordered products till the Buyer fulfils all its obligations against the Contractor existing as of the agreed date of delivery.
- 4.7. The prices of goods as quoted by the Contractor are based, among other things, on the prices of raw materials, employees' wages, prices of energy, costs required for replacement of missing raw materials by other raw materials and exchange rate fluctuations. The Contractor predominantly reserves the right to change prices of goods accordingly if the prices or values of the items as stated above change. However, such a change shall not affect any delivery of goods executed on the basis of an order confirmed by the Contractor before the prices of goods were changed.
- 4.8. The Buyer undertakes to indicate the Contractor's bank account number, constant symbol, variable symbol, remitted amount and due date in every payment order given to its bank.

5. Delivery

- 5.1. Unless otherwise agreed, the Seller shall choose the carrier and shall pay costs connected with the transport of goods to the place of destination; goods shall always be delivered and shipped at the risk of the Buyer (CPT, Incoterms 2000). The method of shipment shall be determined after agreement with the Buyer.
- 5.2. The transport shall only be insured if it is ordered by the Buyer in writing, at the Buyer's expense.
- 5.3. If an order for goods was not cancelled properly and the goods cannot be delivered to the Buyer for a reason on the part of the Buyer, and the Contractor cannot use the goods for further sale of processing, the goods shall be stored at the risk of the Buyer. The costs for storage of such goods shall be 4% of the purchase price of the goods per every started month, commencing on the first day of such storage. Should the Buyer not take goods over within one month of the agreed takeover date, the Contractor shall be entitled to terminate the contract, and the Buyer shall pay the Contractor the costs for storage or alternative location of the goods (if paid by the Contractor) and a contractual penalty, amounting to 20% of the price of the stored goods. By agreement or payment of the contractual penalty, the Contractor's right to compensation for damages shall not be affected.
- 5.4. If goods are delivered on pallets, disposable pallets or euro pallets shall be used, unless otherwise agreed. Unless otherwise agreed, the cost of pallets shall be included in the price of delivered goods, and the pallets shall not be returnable.

6. Delivery terms

- 6.1. Goods may be collected from the warehouse within 7 – 10 working days, or within 14 working days of written or phone order confirmation if delivered goods are cardboard tubes determined for further processing. If the Buyer, however, confirmed the other delivery condition of EXW, he must always ask in advance whether the required goods are in stock.

7. Joint provisions

- 7.1. The Contractor shall not be responsible for a breach of any of its obligations under the contractual relationship arisen in consequence of unforeseeable obstacles, among others in manufacture, during transport, in the case of supply problems at the company of the Contractor or its suppliers, or due to force majeure. For the purposes of contractual relations between the Contractor and the Buyer, force majeure is primarily deemed to be the breakdown of the Contractor's machines, shortage of driving force or energy, strike, shutdown, fire, flood and any circumstance beyond the control of the Contractor due to which the Contractor cannot fulfil its obligations. If the Contractor cannot fulfil its